

- **All relevant evidence is admissible, unless a court makes a discretionary determination that the presumed value of the evidence is substantially outweighed by pragmatic considerations.**
- Evidence that a person has/doesn't have liability insurance is inadmissible to prove fault. Exceptions: ownership/control and impeachment.
- Subsequent remedial measures are inadmissible to prove negligence, culpable conduct, need for a warning, product defect. Exceptions: ownership/control and feasibility, New York: products liability action based on strict liability for a manufacturing defect.
- Evidence of settlement/offers to settle/statements in settlement negotiations are inadmissible to prove liability, but admissible to impeach.
- Offers to pay hospital expenses are inadmissible to prove liability, but statements of fault are admissible.
- Offers to plead guilty, withdrawn pleas, nolo contendere, statements of fact inadmissible against D in pending criminal litigation. But in New York, withdrawn guilty pleas may be used.
- **As a general rule, character evidence is not admissible to prove propensity**, however Defendant may introduce evidence of his own good character trait (R/O, R) and the prosecution may rebut with evidence of D's bad character for the same trait (R/O, R) or by cross examining D's witness re: D's specific acts, and in New York proof of conviction reflecting adversely on that trait (subject to good faith).
- Only in NY, Evidence of victim's character is inadmissible to prove victim was the first aggressor, but Defendant may offer his own knowledge of victim's bad character for the purpose of showing he reasonably believed in the need to use self-defense (R/O/S)
- In a case involving sexual misconduct, defendant cannot introduce evidence of victim's reputation for promiscuity or prior sexual conduct, except victim's sex with D if consent defense, victim's sex with others to show source of physical evidence, and evidence required by Due Process, and in NY: evidence of victim's conviction for prostitution within 3 years.
- **Propensity evidence is inadmissible to prove conduct on a particular occasion, but habit of a person** (or business organization routine) is admissible to infer how the person or business acted on the occasion at issue in litigation. IN New York, habit on issue of due care in negligence action is inadmissible, but business/trade/profession is admissible as is personal habit in use of a product.
- Defendant's other crimes/specific bad acts are inadmissible during prosecution's case in chief to prove propensity, but may be admissible to show MIMIC.
- In NY sex assault/child molestation, prosecution may not offer evidence of D's prior sex assaults to prove propensity.
- **To be relevant evidence, similar occurrence must relate to the same time, event or person involved in the present litigation or it is admissible**, unless (1) habit, (2) evidence of P's accident history (generally inadmissible) to show fraudulent scheme/plan/causation, (3) other accidents (generally inadmissible) to show dangerous condition, causation, prior notice (4) intent at issue (5) selling price of comparable property (6) industrial custom.

- Judicial notice is recognition of fact without formal presentation of evidence.
- **Best evidence rule: If a party seeks to prove the contents of a writing, the party must produce the writing or provide an acceptable excuse for its action.**
- Authentication: party must introduce sufficient evidence that the item is what the party claim sit is.
- To be competent, the witness must have opersonal knwoledge and taken an oath (udnerstands the obligation to tell the truth and promises to tell the truth).
- **New York Dead Man’s statute: a party cannot testify against a dead party about communications with the dead party except in an accident based on negligence, surviving party may testify about the facts of the accident** (no objection, decedent’s representative testifies, decedent’s testimony).
- Generally leading questions are not allowed on direct.
- **As a general rule, a witness may not read from a prepared memorandum**, but must tesitfy ont eh basis of current recollection.
 - If a witness forgets something he once knew, he may be shown something to “jog” his memory.
 - Writing may be read to jury as “past recollection recorded” if witness that fails. IN New York, the party using can also introduce this as an exhibit.
- Lay opinion is admissible if it is rationally based on the witness’ perception and helpful to the jury.
- An expert may testify as to opinion as ane xpert of qualified, test sufficiently reliable.
- **Federal Daubert standard: has methodology been tested, are there known rates of error, subject to peer review, been generally tested.**
- **NY Frye standard: has methodology been generally accepted by the relevant professional community.**
- A witness who is being impeached with a prior inconsistent statement must be given an opportunity to explain/deny the prior inconsistent statement (NY while on the stand, Federal by extrinsic evidence), unless the witness is the opposing party.
- A party may impeach a witness by calling another witness to testify to the target witness’ bad character for veracity (R/O, R)
- A witness may be impeached with a conviction for any crime, but if the witness is a criminal defendant the Court must conduct a “Sandoval hearing” (probative value v. prejudice)
- In New York, a witness may be asked about prior bad acts that show moral turptidue.
- **NY “Voucher rule”: so a party cannot impeach its own witness, unless with a prior inconsistent statement made in writing/signed or by oral testimony under oath** (affirmatively damaging exception)
- There are no prior identifications permitted in NY in civil cases, the identification must be made by a trial witness who is subject to cros
- **Impeachment** (witness is not credible): bias, sensory deficiencies, reputation/opinion, criminal convictions, bad acts, moral turptitude, contradictions.

- o **Rehabilitation:** prior identification (not in New York), good character for truthfulness (R/O, R), prior consistent statement

Privileges

- o Federal: attorney client, husband-wife, priest penitent, psycho-therapist/patient
- o NY: doctor/patient, social worker/client, reporter/source
- o Confidential communications between an attorney and client during the professional legal consultation are privileged unless the privilege is waived by the client or an exception applies. Subject to Joint client rule: if 2+ client with common interest, same attorney, communications are privileged re: third parties unless they later have dispute re: common interest.
- o Doctor/Patient privilege: confidential communications from the patient for the purpose for diagnosis of treatment of a medical condition are privileged.
- o Confidential communications between spouses are privileged and must be waived by both spouses.
- o In a criminal case, prosecution cannot compel the Defendant's spouse to testify against the D, but this does not exist in NY.

Absent an exception (NY) or exclusion (Federal), hearsay is admissible.

- o **Nonhearsay:** impeachment, verbal acts, effect on person who heard/read statement, circumstantial evidence of speaker's statement of mind.
- o **Exception:** party admission, unavailable: former testimony, forfeiture by wrongdoing, dying declaration, declarations against interest ("PAILS"), any: excited utterance, present sense impression, statement of then-existing mental, emotional, physical condition
- o Prior statements: a witness' own prior statement if offered to prove truth is hearsay and inadmissible unless an exclusion
- o A party who intentionally and wrongfully makes a declarant unavailable cannot raise a hearsay objection to the admission of declarant's out of court statements.
- o In Criminal cases, the 6th A requires that the defendant be confronted with witnesses against him. Prosecution may not offer testimonial hearsay violating the defendant's right to cross examine the declarant.
- o If hearsay is admitted, opposing party may use any of the impeachment methods to attack the credibility of the hearsay declarant.